Anumaya Interiors Pvt Ltd vs Sanjeev Kumar Jha on 16 February, 2023

Author: Navin Chawla

Bench: Navin Chawla

$~17 &18
* IN THE HIGH COURT OF DELHI AT NEW DELHI
(17)+ O.M.P. (COMM) 552/2016
ANUMAYA INTERIORS PVT LTD ..... Petitioner
Through: Mr.Ajay Kohli, Ms.Dipika Prasad, Advs.
versus

SANJEEV KUMAR JHA ..... Respondent
Through: Dr.Amit George, Mr. Kartickay Mathur, Mr.Amol Acharya, Mr.Rayadurgam Bharat, Mr.Piyo Harold Jaimon, Mr.Arkaneil Bhaumik, Advs.

(18)+ OMP (ENF.) (COMM.) 26/2021
SANJEEV KUMAR JHA .... Decree Holder
Through: Dr.Amit George, Adv.

versus

ANUMAYA INTERIORS PRIVATE LIMITED
..... Judgement Debtor
Through: Mr.Ajay Kohli, Ms.Dipika Prasad, Advs.
CORAM:
HON'BLE MR. JUSTICE NAVIN CHAWLA
ORDER

% 16.02.2023 I.A. 3143/2022 & I.A. 19384/2022 in O.M.P. (COMM) 552/2016

1. The petitioner has filed the I.A. 3143/2022, under Order VI Rule 17 of the Code of Civil Procedure, 1908 (in short 'CPC') seeking to bring on record additional facts.

2. I.A. 19384/2022 also has been filed by the petitioner to place on record the certified copy of the charge-sheet/Final Report dated 03.11.2022 filed in FIR no.110/2021, PS Barakhamba Road. The said document is being placed in support of the allegation made in IA no.3143/2022 and is therefore, being considered by this common order.

3. The present petition has been filed by the petitioner challenging the arbitral Award dated 29.07.2016 passed by the learned Sole Arbitrator adjudicating the disputes that had arisen between

the parties in relation to the Agreement dated 14.06.2010 by which certain works of construction and renovation of building at Shanti Niketan, Shivaji Road, Meerut (UP), was awarded by the petitioner to the respondent.

4. It is the case of the petitioner that the learned Sole Arbitrator has placed reliance on the alleged bill dated 11.10.2010 marked as Ex.CW1/17 (colly.) running into 5 pages.

5. By way of the present application, that is, I.A. 3143/2022, the petitioner wishes to add the plea that the said alleged bill is a concocted document and in support of such plea, wishes to place reliance on the information downloaded from the website of www.tinxsys.com to show that the tax invoice allegedly attached with the bill dated 11.10.2010 refers to the TIN which itself was generated only on 28.01.2011. The petitioner also wishes to rely upon the response allegedly issued by the Deputy Commissioner, Commercial Tax, to the SHO, P.S. Chanakyapuri, annexed with the charge-sheet, to show that the said TIN was generated only on 28.01.2011 and, therefore, the same could not have formed part of the bill dated 11.10.2010, on which the impugned Award was passed by the Sole Arbitrator.

6. Placing reliance on the judgment of the Supreme Court in Venture Global Engineering v. Satyam Computer Services Ltd. & Anr, (2010) 8 SCC 660, the learned counsel for the petitioner submits that as the respondent has placed reliance on false and fabricated documents, misleading the Arbitral Tribunal, such plea can be taken by the petitioner as and when such fraud is detected.

He submits that this plea would go to the root of the dispute and, therefore, the petitioner should be granted liberty to raise the same in the present petition. He submits that the documents on basis of which the above plea is based, should also be allowed to be brought on record by this Court.

7. On the other hand, the learned counsel for the respondent submits that the present applications are an abuse of the process of the Court. He submits that the dispute between the parties is on an agreement of 2010. The impugned Award was passed on 29.07.2016, while the present applications have been filed in the year 2022, that is, after a period of 6 years of the Award. He submits that the document, that is, the tax invoice, did not form part of the bill dated 11.10.2010 but was subsequently raised on the petitioner.

8. Further, placing reliance on the order dated 12.05.2022 passed on Bail Appl. No.827/2022, he submits that the respondent has been granted anticipatory bail in the FIR referred to by the petitioner, finding that the issues raised by the petitioner in its complaint are covered by the Arbitral Award.

9. He submits that the plea of fraud has been raised by the petitioner only to somehow defeat the binding effect of the impugned Award. He submits that such belated challenge cannot be allowed and in support thereof, he places reliance on the judgment of the Supreme Court in Maharashtra State Electricity Distribution Company Limited v. Datar Switchgear Limited & Ors., (2018) 3 SCC 133.

10. I have considered the submissions made by the learned counsels for the parties.

11. The impugned Award refers to the subject bill dated 11.10.2010, allegedly raised by the respondent on the petitioner and marked as Ex.CW1/17 (colly.) (pages 1 to 5). The said document in turn states that four further documents have been annexed therewith, including 'bill with tax'. The said document refers to TIN 09666107497. The petitioner, through the print-out of the website referred above and the response of the Deputy Commissioner Commercial Tax, is prima facie able to establish that the said TIN was generated only on 28.01.2011.

12. In my view, therefore, the plea now raised by the petitioner would go to the root of the dispute between the parties and would have a vital effect while considering the challenge of the petitioner to the impugned Award.

13. In Venture Global Engineering (supra), the Supreme Court has observed that the facts which surface subsequent to the making of the Award but having a nexus with the facts constituting the Award and are relevant, can be considered by the Court if they demonstrate that there has been a fraud in making of the Award. It was held that the concealment of the relevant and material facts, which should have been disclosed before the learned Arbitrator, is an act of fraud and a party, who has suffered an Award against another party who has concealed facts and obtained an Award, can rely on such facts to challenge the Award.

14. At present stage, this Court is not to consider the submissions raised by the petitioner on merits. This would necessarily have to be left to be considered along with other challenge to the Arbitral Award and after giving an opportunity to the respondent to file its response to the allegations raised by the petitioner. At the present stage, it may only be said that the plea sought to be raised by the petitioner cannot be said to be frivolous or one which cannot be allowed to be raised at a belated stage.

15. As the plea of fraud has been raised, the judgment of the Supreme Court in Maharashtra State Electricity Distribution Company Limited (supra) relied upon by the learned counsel for the respondent would not come to its aid.

16. In view of the above, the present two applications are allowed and the amended petition is taken on record.

17. The documents filed along with the present two applications shall also be considered along with the petition.

18. The applications are accordingly disposed of.

O.M.P. (COMM) 552/2016 & I.A. 5434/2021 OMP (ENF.) (COMM.) 26/2021

19. The respondent is granted six weeks to file a response to the amended petition.

20. While filing such response, as the additional documents have been allowed to be taken on record on behalf of the petitioner, therefore, the respondent shall also be entitled to place additional documents not forming part of the Arbitral Record, on record to rebut such additional documents/pleadings.

21. List on 18th July, 2023.

NAVIN CHAWLA, J FEBRUARY 16, 2023 RN